THE NATIONAL CIVIL (CODE), 2074
| मुलुकी-देवानी-संहिता-ऐन-२०७४



WITH LATEST AMENDMENTS

CAP II/ APPLICATION LEVEL

COVERAGE OF LEARNING OBJECTIVES AS PER NEW SYLLABUS





BY CA GOVINDA TAMANG

Syllabus Weightage

Applied Law



	Syllabus Area	Weighting (%)
1	**Nepal Chartered Accountants Act, 2053,** rules and Government Audit	10%
2	**Industry Related Acts:** Companies Act, 2063, Industrial Enterprises Act, 2076 and Foreign Investment and Technology Transfer in Nepal	30%
3	**Finance Related Acts:** Banks and Financial Institutions Act, 2073, Nepal Rastra Bank, 2058, Insurance Act, 2079 and Securities Act, 2063 and rules	30%
4	**Labour Act, 2074 and Other Acts Related to Employment**	10%
5	**The National Civil (Code), 2074 (Part V)**	10%
6	**Acts related to Social Organizations**	5%
7	**Understanding public procurement in Brief**	5%

Total Weightage — **100%**

THE NATIONAL CIVIL (CODE), 2074 (PART V): LO5

CANDIDATES WILL BE ABLE TO EXPLAIN THE PROVISIONS RELATED TO PERFORMANCE AND BREACH OF CONTRACT AND ITS REMEDIES ALONG WITH INDIRECT OR QUASI CONTRACT, UNJUST ENRICHMENT AND LIABILITY FOR DEFECTIVE PRODUCTION.

a) INTERPRET THE PROVISION RELATING TO TIME, PROCEDURE, PLACE CIRCUMSTANCE AND FOR PERFORMANCE OR NON-PERFORMANCE OF CONTRACT (SECTION 521 – 534)



b) INTERPRET THE PROVISION RELATING TO BREACH OF CONTRACT AND ITS REMEDIES ALONG WITH SPECIFIC PERFORMANCE OF CONTRACT. (SECTION 535 - 544)



c) INTERPRET THE PROVISIONS RELATING TO INDIRECT OR QUASI CONTRACT (SECTION 648 - 663)

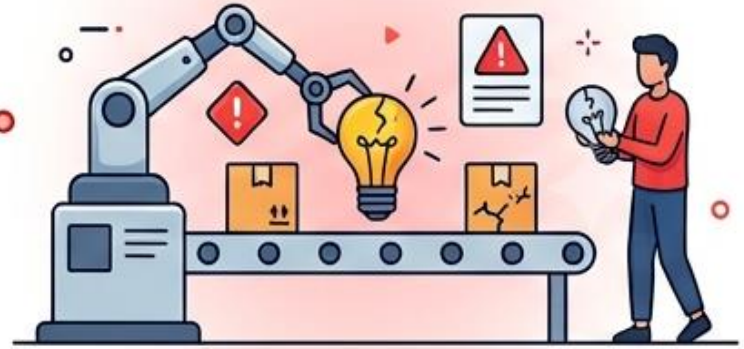




d) INTERPRET THE PROVISIONS RELATING TO UNJUST ENRICHMENT (SECTION 664 - 671)



e) INTERPRET THE PROVISIONS RELATING TO LIABILITY FOR DEFECTIVE PRODUCTION (SECTION 685 - 690)





The National Civil (Code) Act, 2074

For a just, orderly and harmonious society



Date of Authentication and Publication

2074/8/30
(BS)

Act No.

34 of the Year 2074

Amending Acts

The National Civil (Code) Act, 2074
2074/8/30
(BS)

Act to Amend Some Nepal Acts Relating to the Civil Code, 2076
2076/1/2
(BS)

Act to Amend Some Nepal Acts Relating to the Civil Code, 2080
2080/4/12
(BS)

2074 — 2076 — 2080

Preamble

Whereas, it is expedient to amend and consolidate the provisions relating to civil matters contained in the Muluki Ain and other prevailing laws, and to make such provisions timely, in order to maintain morality, decorum, good conduct and convenience of the general public, to protect economic interests, and to maintain a just system in the economic, social and cultural spheres, and to maintain good relations among various castes, tribes or communities, by establishing law and order in the country;

Now, therefore, the Federal Parliament has enacted this Act pursuant to clause (1) of Article 296 of the Constitution of Nepal.

Chapter-4 Provisions Relating to Performance of Contracts

LO	Syllabus content	Technical grid reference
LO 9a	• Liability under contract to be fulfilled • Reciprocal compliance with contract • Time and procedure of performing contract • Place for performing contract • To be held performance of contract delayed • Time to be held substance of contract • Circumstances in which contract need not be performed • Devolution of rights and liabilities of contract • Person to execute contract • Only the party shall have right to execute the contract • Contracts need not executed in the event of fundamental changes in the circumstances or Doctrine of supervening impossibility or Doctrine of frustration • Facilities to be provided • Contract may be suspended or altered • Limitation	Section 521 to 534 of the National Civil (Code), 2074 (Part V): Contract

PERFORMANCE OF CONTRACT (SECTIONS 521–523)

SECTION 521 – OBLIGATION UNDER CONTRACT



Each party must fulfill tlfill their contractual obligations.

SECTION 522 – RECIPROCAL PERFORMANCE OF CONTRACT

1. **Where promises are to be performed simultaneously, a party need not perform if the other party shows unwillingness to substantially perform.**

2. If the contract specifies **the order of performance,** promises **must be performed in that order.**

3. **If no order is specified,** the party required to perform **first** by the nature of the contract shall **perform first.**

4. Where performance of **one promise depends on the other,** failure by one party may allow the other party to recover loss or damage.

If one party prevents the other from performing a simultaneous reciprocal contract, the prevented party may:

- Rescind the contract, and
- Recover loss or damage caused by the termination.

SECTION 523 – TIME & MANNER OF PERFORMANCE

If the contract specifies the time and manner, it must be performed accordingly.

If not specified, but the act can only be performed at a particular time or in a particular manner, it must be performed accordingly.

Otherwise, performance must be completed **within a reasonable time and in a reasonable manner.**

SECTIONS 524–526: PLACE, DELAY & TIME OF PERFORMANCE

SECTION 524 – PLACE FOR PERFORMANCE

- If the contract specifies a place, performance must occur there.
- For delivery of goods, if no place is specified → deliver at the place where the goods are located.



- If the act can be performed only at a particular place due to practice, usage or nature of the act → performance must occur there.



- In other cases, the performing party must notify the other party to specify a reasonable place.



SECTION 525 – DELAYED PERFORMANCE

- Failure to perform at the specified time → performance is deemed delayed.
- If performance is still possible, the aggrieved party may give reasonable time by notice.



- Upon notice, the other party must perform and may claim compensation for loss/damage caused by the delay.



- If performance still does not occur → the party giving notice may rescind the contract.



SECTION 526 – TIME AS ESSENCE OF CONTRACT

- **Time** is the essence of the contract when performance within a particular day/time/period is **essential** to achieving the contract's purpose, considering its **nature** or parties' intention.



- Failure to perform within that specified time → breach of contract.



- The other party may immediately rescind the contract.



SECTIONS 527–529: NON-PERFORMANCE, SUCCESSION & ASSIGNMENT

SECTION 527 – CIRCUMSTANCES WHERE CONTRACT NEED NOT BE PERFORMED

- A contract need not be performed where:
  - One party waives the other party's obligation.
  - A voidable contract is legally voided by the entitled party.
  - Performance becomes impossible due to breach by the other party.
  - Performance is not required under this Part of the Act.
  - The contract is unenforceable under Section 531.

SECTION 528 – ASSIGNMENT OF RIGHTS & LIABILITIES

- If a party dies or becomes insane, contractual rights pass to the heir succeeding the property.
  - The heir bears the contractual obligations to the extent of the property inherited.
  - Personal skill or qualification-based rights and obligations do not pass to the heir.

SECTION 529 – PARTY WHO MUST PERFORM CONTRACT

- Contract may generally be performed by an agent, appointed person or another person on behalf of the party, unless personal performance is required.
  - Obligations cannot be transferred without the other party's consent.
  - Transfer of rights/obligations requires:
    - Written form, unless otherwise provided.
    - Unconditional transfer.
    - Transfer must not be prohibited by law or contract.
    - Notice with a time limit must be given to the other party.
  - Acceptance of performance by a third person prevents a later demand for personal performance, unless the contract provides otherwise.
  - Where there are joint promisors, any or all may fulfill the obligation, unless otherwise agreed.
    - A joint promisor who performs may recover proportionate loss/damage from defaulting joint promisors.
    - Release of one joint promisor by the other party does not discharge the remaining joint promisors.

SECTION 530 – WHO CAN DEMAND PERFORMANCE



Generally, only a party to the contract can demand its performance.



EXCEPTION

A third-party beneficiary may demand performance if the contract was made for that person's benefit.



Where two or more persons jointly enter into a contract, all joint parties may jointly demand performance, unless the contract provides otherwise.

JOINT PARTIES



SECTION 531 – DISCHARGE DUE TO FUNDAMENTAL CHANGE IN CIRCUMSTANCES



If a fundamental change in circumstances makes contractual performance impossible, the contract need not be performed.

FUNDAMENTAL CHANGE INCLUDES:



Contract becomes illegal.



Uncontrollable events such as war, flood, landslide, fire, earthquake or volcanic eruption make performance impossible.



Essential subject matter is destroyed, damaged, unavailable or no longer exists.



A contract dependent on personal ability, skill or talent becomes impossible due to death, insanity or physical/mental incapacity.

NOT CONSIDERED FUNDAMENTAL CHANGE:



Performance merely becomes difficult.



Contract becomes less profitable or causes loss.



Default/incompetence of a third party relied upon for performance.



Strike or lockout.



Additional tax, fee or revenue becomes payable.



A multi-object contract becomes impossible for some, but not all, objects.

WHERE PERFORMANCE BECOMES DIFFICULT



Parties may negotiate to review or modify the contract terms, unless the contract provides otherwise.

CONSEQUENCES OF FUNDAMENTAL CHANGE



Amounts received before the change must generally be refunded.



Amounts becoming payable after the change are not payable.



Final amounts between parties are determined considering performance/payment already made, with entitlement to recover reasonable expenses incurred for the contract.



Parties may agree to continue performing the contract after the end of certain uncontrollable circumstances (war, flood, etc.).

SECTIONS 532–534: FACILITIES, MODIFICATION & LIMITATION

SECTION 532 – FACILITIES TO BE PROVIDED



Contracting parties must provide each other with the necessary facilities to perform their respective obligations.

If performance fails are due to one **party's failure to provide required facilities, that party is responsible for the default, and the other party is not liable for for non-performance.**



SECTION 533 – CONTRACT MAY BE SUSPENDED OR ALTERED

BY MUTUAL AGREEMENT, PARTIES MAY:

- Modify or alter contractual obligations.
- Extend the performance period.
- Suspend the contract for a specified period.
- Substitute one act for another.
- Make a new contract in place of the original.
- Any agreed alteration/modification is treated as a new contract.
- Once the new contract takes effect, obligations under the original contract cease, unless the new contract provides otherwise.









SECTION 534 – STATUTE OF LIMITATION

- A person aggrieved by an act or action under this Chapter may file a lawsuit within 2 years from the date the cause of action arises.





Chapter-5 Provisions Relating to Breach of Contract and Remedies

LO	Syllabus content	Technical grid reference
LO 9b	• Breach of contract • Indivisible nature of the authority to cancel the contract • Compensation on breach of contract • Compensation in the event of cancellation or termination of contract • Right to recover a reasonable amount for the performance of contract • Specific performance of contract • Court may issue order • Compensation to be determined on monetary price • Court may consider • Limitation	Section 535 to 544 of the National Civil (Code), 2074 (Part V): Contract

SECTIONS 535–537: BREACH, RESCISSION & COMPENSATION

SECTION 535 – BREACH OF CONTRACT

BREACH OCCURS WHEN A PARTY:

- Fails to fulfill a contractual obligation;
- Notifies the other party that they will not perform; or
- Conduct shows they are incapable of performing.

IF BREACH IS MATERIAL:

- The other party may rescind the contract by notice.
- After valid rescission, the party rescinding is not bound to perform the contract.

SECTION 536 – RESCISSION BY MULTIPLE PERSONS

If one party consists of two or more persons, the contract can be rescinded only when:

All such persons rescind,

or

The rescission applies to all of them.

SECTION 537 – COMPENSATION FOR BREACH

AGGRIEVED PARTY MAY RECOVER:

Actual loss or damage caused by the breach;

or

Loss/damage that the parties knew was likely to result when the contract was made.

IF A SPECIFIED COMPENSATION AMOUNT IS AGREED IN ADVANCE

→ Reasonable compensation may be recovered up to that specified amount.

IF NO AMOUNT IS SPECIFIED →

→ Reasonable compensation may be recovered for direct and actual loss/damage.

Indirect or remote losses are not compensable.

- For contracts requiring completion within a fixed period, where agreed compensation is payable for delay/non-completion, the paying party may request extension of the completion period set proportionate to the compensation paid.
- Payment of compensation does not prevent a party from seeking other legal remedies for breach.

SECTIONS 538–540: RESCISSION, QUANTUM MERUIT & SPECIFIC PERFORMANCE

'SECTION 538 – CONSEQUENCES OF RESCISSION OR VOIDANCE'



On rescission/voidance/invalidity of a contract, benefits already received must generally be returned after settlement of accounts.





For services or other benefits that cannot be returned, the receiving party must pay a reasonable amount.

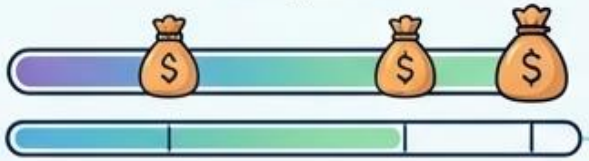


Reasonable expenses incurred for legal action to recover such amounts may also be recovered.

SECTION 539 – QUANTUM MERUIT



If a contract is rescinded due to breach or another reason, the aggrieved party may claim payment in proportion to the work performed or performance already made.



SECTION 540 – SPECIFIC PERFORMANCE



Where monetary compensation is not adequate for the actual loss caused by breach, the party may claim specific performance instead of compensation.

SPECIFIC PERFORMANCE NOT AVAILABLE WHERE:

- Monetary compensation is adequate.
- The court cannot supervise performance of the contractual act.



- The contract involves personal ability, skill or knowledge.



- The contract cannot be specifically performed.



- The breaching party seeks specific performance.



SECTIONS 541–544: COURT ORDERS, COMPENSATION & LIMITATION



SECTION 541 – POWER OF COURT TO MAKE ORDER

- If a party is about to act contrary to the nature of the contract, making performance impossible, the aggrieved party may file a complaint in court.
- Court may order the party to immediately stop the particular act or conduct.
- If the order is violated, the aggrieved party may also recover additional loss or damage caused by the non-compliance.

SECTION 542 – COMPENSATION IN MONETARY VALUE



SECTION 542 – COMPENSATION IN MONETARY VALUE

- Compensation for loss or damage is generally assessed in monetary terms, unless the contract provides otherwise.
- Section 540 (specific performance) remains applicable.

SECTION 543 – MATTERS CONSIDERED FOR COMPENSATION



SECTION 543 – MATTERS CONSIDERED FOR COMPENSATION

- Court considers, among other matters:
- Whether the breach was intentional.
- Whether non-performance resulted from recklessness.
- The money or benefit the innocent party would have received if the contract had been performed.

SECTION 544 – STATUTE OF LIMITATION



SECTION 544 – STATUTE OF LIMITATION

- A person aggrieved by an act or action under this Chapter may file a lawsuit **within 2 years from the date the cause of action arises.**



Chapter-15 Provisions Relating to Indirect or Quasi-Contracts

LO	Syllabus content	Technical grid reference
LO 9c	• To deem indirect or quasi contract made • Not to leave unfinished negotiorum gestio which is taken by will • To look after or manage by one who take responsibility of property • The delegator not be free from liability • To give reasonable expenses for saving property during disaster • To claim reimbursement • To claim for nurture • To compensate the expenses spent on funeral of the dead by the heir • To bear the expenses of nurture of disabled person by relative • To reimburse the expenses of treatment • To bear expenses spent by public body • To reimburse the amount paid by stakeholder • To pay price or remuneration • To get price of goods or service paid • To keep the property under control as equal as deposit • Limitation	Section 648 to 663 of the National Civil (Code), 2074 (Part V): Contract

QUASI-CONTRACT & VOLUNTARY MANAGEMENT

LEGAL OBLIGATIONS & DUTIES



SECTION 648 – INDIRECT OR QUASI-CONTRACT

A lawful, voluntary and **unilateral** act that creates a **legal relationship** is deemed to create an **indirect/quasi-contract**.

Such act creates corresponding **legal obligations under this Chapter.**







SECTION 649 – VOLUNTARY MANAGEMENT OF ANOTHER'S PROPERTY (*Negotiorum Gestio*)

A person who voluntarily manages another's business or property **without authority or notice** must **continue managing** it while it exists.

The person cannot abandon it until:

1. It is handed over to the owner, successor or agent, or
2. The owner removes the manager.







SECTION 650 – DUTY TO CARE FOR PROPERTY IN CUSTODY

A person taking custody of another's property for care or management must **act in good faith**, as if it were their own property.

Malafide or reckless conduct causing loss/damage → **compensation is payable.**







SECTION 651 – DELEGATION DOES NOT DISCHARGE OBLIGATION

A person entrusted with a responsibility may **delegate their powers** to another person, provided the delegation does not prejudice the original obligation.

Delegation **does not release the original person** from their own **contractual/legal obligation.**





SECTIONS 652–655: REIMBURSEMENT & MAINTENANCE

SECTION 652 – EXPENSES FOR SAVING PROPERTY IN DISASTER



A person who saves or protects another's property during disasters such as fire, flood, landslide, storm or earthquake may claim reimbursement.

The owner must reimburse the reasonable expenses incurred, even if the owner was not informed.

SECTION 653 – RIGHT TO CLAIM REIMBURSEMENT



If a person fulfills a legal obligation at their own expense, and another person receives a benefit from it, they may claim reimbursement from the beneficiary.

EXCEPTION:
No reimbursement can be claimed if the obligation was fulfilled for an illegal purpose.

SECTION 654 – RIGHT TO CLAIM MAINTENANCE EXPENSES



A person who rears and maintains another person without informing the person legally responsible for that maintenance may claim the reasonable maintenance amount from the responsible person.

No claim if the maintenance was provided:

- Out of compassion
- For gratification, or
- With an intention to provide it gratuitously.

SECTION 655 – REIMBURSEMENT OF FUNERAL & OBSEQUIES EXPENSES



A person who performs the funeral and obsequies of a deceased according to their rites, traditions and culture, without informing the heir or close relative, may claim reimbursement.

The closest heir must reimburse the expenses.

If there is no heir, the relative of the deceased must reimburse the expenses.

QUASI-CONTRACTUAL OBLIGATIONS (SECTIONS 656–663)



Section 656 – Maintenance of Incompetent Person

If a person legally responsible for maintaining or caring for a person of unsound mind, physically infirm person, or helpless minor without income refuses to do so:

A person who provides the maintenance/care may claim reimbursement of expenses from the person legally responsible.



Section 657 – Reimbursement of Treatment Expenses

If a person becomes seriously ill due to accident or other reason, and someone voluntarily arranges medical treatment, the heir, relative or close person must reimburse the treatment expenses.

Exception: No reimbursement if treatment was provided gratuitously.



Section 658 – Expenses Incurred by Public Bodies

If a person voluntarily fails to follow legally required health or safety measures, and a government/public body takes those measures:

The person must pay the reasonable expenses incurred, even without their consent.



Section 659 – Reimbursement of Amount Paid by Interested Person

Where a person is legally liable to pay an amount and another person has undertaken by contract to pay it:

If the legally liable person pays the amount, the contracting person must reimburse that amount.



Section 660 – Payment for Goods or Services

A person receiving goods or services/work must pay the applicable price or reasonable remuneration.



Section 661 – Recovery for Goods or Services Supplied

Where goods/services are supplied to a person incapable of contracting, or to someone whom that person is legally required to support:

The supplier may recover the price of the goods or services from the recipient.



Section 662 – Property Held as Bailment

A person who lawfully keeps another person's property in their custody must treat and preserve it as bailed property.



Section 663 – Statute of Limitation

A person aggrieved under this Chapter may file a lawsuit within 2 years from the date the cause of action arises.

Chapter-16 Provisions Relating to Unjust Enrichment

LO	Syllabus content	Technical grid reference
LO 9d	• To deem unjust enrichment made • To return solutio indebiti • To return the loan paid by mistake • To return the goods or amount and its benefit received with ill-intention • To pay up the loan paid by the third person • To claim reimbursement in case the tax to be paid is paid by another • To keep the goods found by informing the police • Limitation	Section 664 to 671 of the National Civil (Code), 2074 (Part V): Contract

Sections 664–666: Unjust Enrichment & Mistaken Payments

Section 664 – Unjust Enrichment

Definition

A person is **unjustly enriched** when they **receive a benefit or advantage** from another **without lawful basis** or **fulfillment of an obligation.**



Unjust enrichment includes:



Increase in property or reduction of liability



Receiving another person's service or work



Using another person's property

It is not unjust enrichment where:



The benefit/goods/services are obtained under law or contract;



The provider has freely agreed not to take it back or seek reimbursement.

Any later loss, disadvantage or damage suffered **after receiving the benefit is not considered when determining unjust enrichment.**



A person who obtains unjust enrichment becomes **subject to the obligations** under this Chapter.



Obligation

Section 665 – Goods Taken by Mistake (Solutio Indebiti)



If a person mistakenly **takes or receives goods** to which they are not entitled, they must **return the goods** to the person from whom they were received.



Section 666 – Debt Paid by Mistake





If a person mistakenly **pays a debt** believing they are legally bound to pay it, but **proves that no such obligation existed:**



SECTIONS 667–671: RESTITUTION, PAYMENT BY OTHERS & FOUND GOODS

SECTION 667 – RETURN OF PROPERTY TAKEN WITH MALAFIDE INTENTION



- A person who receives money or goods without lawful claim and with malafide intention must return:
  - The money/goods;
  - Applicable legal interest on money; and
  - Any benefit or return accrued from the goods.
- These are calculated from the date of receipt until return.
- If the money/goods are lost or damaged, the recipient must **also pay compensation.**

SECTION 668 – DEBT PAID BY THIRD PERSON



- If a third person pays a person's debt without the debtor's knowledge:
  - The debtor must **reimburse the person who paid the debt.**



SECTION 669 – TAX PAID BY ANOTHER PERSON



- If another person pays a tax legally **payable by someone else,** the **payer may claim reimbursement** from the person liable for the tax.
- Tax includes: **government fees,** charges, **tariffs, duties, fines and local taxes.**



4 SECTION 670 – FOUND GOODS



- A person finding goods may **safely retain them** after **notifying the police** with their **actual description,** until the owner is identified.
- **The owner must pay the reasonable expenses** of finding and retaining the goods.
- The finder **may retain the goods** until those expenses are paid.
- If no owner claims the goods for 3 years, **the goods belong to the finder.**

SECTION 671 – STATUTE OF LIMITATION



- A person aggrieved under this Chapter may file a lawsuit **within 2 years from the date the cause of action arises.**



Chapter-18 Provisions Relating to Liability for Defective Products

LO	Syllabus content	Technical grid reference
LO 9e	• To be liable for defective product • Claimant to prove that product is defective • To be in discharge of liability • Quantum of liability may be reduced • Product not deemed to be defective • Not to prejudice other right • Limitation	Section 685 to 691 of the National Civil (Code), 2074 (Part V): Contract

SECTIONS 685–687: LIABILITY FOR DEFECTIVE PRODUCTS

SECTION 685 – LIABILITY FOR DEFECTIVE PRODUCT



No person may produce, sell, distribute or cause the sale/distribution of a **defective product.**

- **THE PRODUCER IS LIABLE FOR LOSS OR DAMAGE TO A PERSON'S BODY, LIFE OR PROPERTY CAUSED BY CONSUMPTION OF THE DEFECTIVE PRODUCT.**



DEFINING DEFECTIVE PRODUCT

A good/service is defective when it lacks the minimum safety reasonably expected by a prudent consumer, due to:

- Defective design, manufacturing, processing or installation.
- Defective packing, safety or storage.
- Defective presentation.
- Lack of adequate safety measures or precautions considering the potential risk/danger.

PRODUCER INCLUDES

GOOD: An industrial product intended for public consumption.

- The person who ultimately produces, sells or distributes the defective product.



- Distributor/seller, if the actual producer cannot be traced.
- For imported products → importer, distributor or seller.



SECTION 686 – CLAIMANT TO PROVE DEFECT & INJURY

THE CLAIMANT MUST PROVE:



The product/service was defective.





There is a relationship between the defect and the injury.



The injury resulted solely from consumption of the product.



SECTION 687 – CIRCUMSTANCES DISCHARGING PRODUCER FROM LIABILITY

A PRODUCER IS NOT LIABLE IF THEY PROVE THAT:



- They did not produce, sell or distribute the product.
- The product was **not defective** when produced/imported/sold/distributed, or became defective afterward.
- The product was **never marketed,** sold or distributed by them.
- Injury resulted from **failure to follow consumer instructions.**



- Injury resulted from **improper consumption/use.**
- At the time of production/distribution, scientific or technical knowledge could not identify the defect.





Adequate warning/information was provided about the risk of injury from improper consumption.

- The consumer used/consumed the product despite knowing, or reasonably being expected to know, the risk of loss or damage.



SECTIONS 688–691: REDUCTION OF LIABILITY & CONSUMER RIGHTS

SECTION 688 – REDUCTION OF PRODUCER'S LIABILITY



- If injury is caused by both the producer and consumer, the **producer's liability may be reduced proportionately.**

Exception: If the loss/damage is suffered by a third party, the liability cannot be reduced on this ground.

SECTION 689 – HIGHER-QUALITY PRODUCT NOT A DEFECT



Product

Higher-Quality Product

Not Defective

A product is not defective merely because a higher-quality product is available in the market.

SECTION 690 – OTHER RIGHTS NOT AFFECTED



- Rights, interests or claims available under other laws or contracts remain unaffected.
- A person affected in body, life or property by a defective product may still exercise those other rights.

SECTION 691 – STATUTE OF LIMITATION



- A person aggrieved under this Chapter may file a lawsuit within 1 year from the date the relevant act was done or action was taken.



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